

#	Case Name	
1	Annevelink vs. Watson 2025-01496571	Motion to Appoint Receiver The court will speak with parties.
2	Biocorr, Inc. vs. VDM Biochemicals, Inc. 2021-01195606	Motion for Limited Discovery Motion for Leave to File Amended Cross-Complaint Court will hear argument.
3	Chau vs. Ho 2025-01492515	Demurrer to Amended Complaint The Demurrer by Defendants International Buddhist Cultural Heritage Foundation (“Foundation”) and Tang Ho aka Thich Vien Ly (“Defendant Ly”), to the First Amended Complaint by Plaintiff Huong Chau (“Plaintiff”), is sustained in part and overruled in part. Foundation’s demurrers to the ninth, tenth, and twelfth causes of action are sustained with leave to amend. The remainder of the demurrers are overruled. <u>9th, 10th, and 12th COA</u> The demurrers by Foundation are sustained, because Plaintiff has not alleged facts showing that Foundation is an “employer” as statutorily defined by Government Code sections 12926 or 12940. The allegations in the FAC reflect that Foundation is a religious association (or entity) that is exempt from the FEHA claims. (See FAC at ¶¶ 5-6., subd. (j)(4)(B).) However, Defendants fail to cite any authority that this defense would apply to Plaintiff’s non-FEHA claims. As such, the Court sustains the Foundation’s demurrers to the 9th cause of action for harassment based on FEHA, 10th cause of action for retaliation in violation of FEHA, and 12th cause of action for discrimination/harassment/retaliation based on FEHA, with leave to amend. Defendant Ly’s demurrer to the 9th COA for harassment is overruled. Defendants contend Defendant Ly cannot be personally liable because he is not alleged to be Plaintiff’s “employer” (as opposed to a “supervisor”) for the purpose of a discrimination claim under FEHA.